

25STCV15618 25STCV15618

County: los-angeles
Division: Civil Law and Motion
Department: 506
Hearing date: 2026-06-30
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Case Number: 25STCV15618 Hearing Date: June 30, 2026 Dept: 506

SUPERIOR
COURT OF THE STATE OF CALIFORNIA

FOR THE
COUNTY OF LOS ANGELES - CENTRAL DISTRICT

14TH & VELASCO LLC,

Plaintiff,

vs.

KEVIN S. BEMEL, et al.,

Defendants.

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CASE NO.: 25STCV15618

[TENTATIVE] ORDER GRANTING IN PART AND DENYING
AS MOOT IN PART MOTION TO EXPUNGE LIS PENDENS

Dept. 506

8:30 a.m.

June 30, 2026

On May 29, 2025, Plaintiff 14th
& Velasco LLC filed this action against Defendant Kevin S. Bemel, as Administrator
of the Estate of Michael J. Meraz.

On
January 16, 2026, Plaintiff filed three Notices of Lis Pendens, recorded on June
17, 2025.

On
May 8, 2026, Defendant filed a motion for order expunging the lis pendens due to
defective service.

When
a party asserts a real property claim, that party may record a notice of pendency
of action in the office of the county recorder.
(Code Civ. Proc., § 405.20.) Before
recording the notice, the claimant must mail a copy to all parties to whom the real
property claim is adverse and to all owners of record of the real property affected
by the real property claim. (Code Civ. Proc.,

§ 405.22.) Immediately after recording the notice, a copy of the notice shall be filed with the court. (Ibid.) If these requirements are not met and if a proof of service is not recorded with the notice of pendency of action, the notice is void and invalid. (Code Civ. Proc., § 405.23.) “[A] party alleging a lis pendens is ‘void and invalid’ (§ 405.23) for defective service may move for expungement on that basis.” (Rey Sanchez Investments v. Superior Court (2016) 244 Cal.App.4th 259, 263.)

It is undisputed that the lis pendens recorded on June 17, 2025 did not comply with the statutory service requirements. On June 9, 2026, about a month after Defendant filed this motion, Plaintiff filed three Notices of Withdrawal and Release of Pendency of Action (Lis Pendens). The motion is now moot.

Defendant’s request for attorney fees is GRANTED. Plaintiff is ordered to pay \$4,750 to Defendant within 30 days.

The motion is otherwise DENIED AS MOOT.

Moving party to give notice.

Parties who intend to submit on this tentative must send an email to the Court at indicating intention to submit. If all parties in the case submit on the tentative ruling, no appearances before the Court are required unless a companion hearing (for example, a Case Management Conference) is also on calendar.

Dated this 30th day of June 2026

Hon. Thomas D. Long

Judge of the Superior Court